Terms of Service

Last Updated: January 19, 2026

Legal Entity: Delta Apps, LLC ("Company," "we," "us," or "our")

1. Acceptance of Terms

By accessing or using the Ripple platform (the "Service"), you agree to be bound by these Terms. If you do not agree, you may not use the Service. You must be at least 18 years old and a resident of an approved US state to use Ripple.

2. Nature of the Service (SaaS Tool)

Ripple is a software platform that facilitates automated charitable giving.

- **Not a Charity:** Ripple is a technology provider, not a 501(c)(3) nonprofit.
- **Not a Solicitor:** We do not solicit donations for specific charities. We provide a tool for you to manage your personal giving.
- **Service Availability:** We reserve the right to modify or discontinue the Service (or any part thereof) at any time without notice.

3. The Donor-Advised Fund (DAF) Model

To ensure regulatory compliance and secure fund disbursement, Ripple utilizes a Giving Partner (a registered 501(c)(3) Donor-Advised Fund).

- **Irrevocable Gift:** When you initiate a "Roundup," you are making an irrevocable charitable gift to our Giving Partner.
- **Grant Recommendations:** You are providing a non-binding recommendation that our Giving Partner grant those funds to your selected charity.
- **Legal Discretion:** Per IRS rules, the Giving Partner maintains final legal control over the funds to ensure they are used for charitable purposes. If a selected charity is no longer in "Good Standing" (IRS/State), the Giving Partner may redirect funds to a similar cause.

4. Platform Fees and Payment Terms

You agree to pay the following **Technical Access Fees** to Delta Apps, LLC:

- **One-Time Setup Fee:** $3.00 (subject to change), processed with your first successful donation.
- **Monthly Maintenance Fee:** $0.30 (subject to change), processed once per month.

- **Platform Fee:** $0.10 per donation event (to cover bank verification APIs).
- **Non-Deductibility:** These fees are for software services and are **not** charitable donations. They are not tax-deductible.
- **Chargebacks:** You agree not to initiate chargebacks for charitable gifts. If a technical error occurs, please contact Ripple support first.

5. Bank Account Linking (Stripe)

We use **Stripe** to facilitate transfers and verify identity.

- **Authorization:** You grant us "read-only" access to your transaction data solely to calculate your roundups.
- **Accuracy:** We are not responsible for errors caused by inaccurate data provided by your financial institution or Stripe.
- **Insufficent Funds:** Ripple will attempt to verify your balance before a transfer, but we are not liable for any overdraft fees incurred.

6. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, DELTA APPS, LLC SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, OR CONSEQUENTIAL DAMAGES ARISING FROM YOUR USE OF THE SERVICE. OUR TOTAL LIABILITY FOR ANY CLAIM SHALL NOT EXCEED THE TOTAL PLATFORM FEES PAID BY YOU IN THE 12 MONTHS PRECEDING THE CLAIM.

7. Indemnification

You agree to indemnify and hold harmless Delta Apps, LLC from any claims, losses, or expenses (including legal fees) arising from:

- Your violation of these Terms.
- Your misuse of the Service.
- Any dispute between you and a recipient charity or your financial institution.

8. Dispute Resolution & Mandatory Arbitration

Any dispute arising from these Terms shall be resolved via **binding arbitration** in Roy, Utah (or virtually), administered by the American Arbitration Association (AAA). **You waive your right to a jury trial or to participate in a class-action lawsuit.**

9. Governing Law

These Terms are governed by the laws of the **State of Utah**, without regard to conflict of law principles.

10. Force Majeure

We are not liable for any failure or delay in performance due to causes beyond our reasonable control, including bank outages, internet failures, or changes in federal/state charity regulations.